

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 18, 2026
8:30 a.m./1:30 p.m.

3. KAYLA BURGESS V. KYLE BURGESS

23FL0919

On December 26, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 20, 2026.

There is no Proof of Service for the RFO or the CCRC referral and only Petitioner attended the scheduled CCRC appointment.

On February 2, 2026, Respondent filed Respondent's Supplemental Declaration Re: Child Custody Recommending Counseling. It was served on January 28th.

Respondent filed a Responsive Declaration to Request for Order on March 9th. It was served on March 6th.

After reviewing the filings by Respondent, it does appear that he has actual knowledge of the RFO and the CCRC referral and he is not objecting to service, therefore, the court finds any potential defect in service was waived and the matter may be reached on the merits.

The matter came before the court on March 26th at which time the parties were re-referred to CCRC and a review hearing was set for the present date.

On April 23, 2026, only Respondent appeared for the CCRC appointment. The RFO is dropped from calendar due to the failure of the moving party, Petitioner, to attend the CCRC appointment.

TENTATIVE RULING #3: THE RFO IS DROPPED FROM CALENDAR DUE TO THE FAILURE OF THE MOVING PARTY, PETITIONER, TO ATTEND THE CCRC APPOINTMENT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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4. AMY KNIERIEM V. BEAU MICHAEL LEMIRE

24FL0133

On March 11, 2026, Respondent filed a Request for Order (RFO) seeking attorney's fees and a vocational evaluation. The RFO and a blank FL-320 were served on March 16th, however Respondent failed to serve the Notice of Tentative Ruling as required.

Respondent filed his Income and Expense Declaration on April 1, 2026. It was served on March 31st.

Petitioner filed and served her Responsive Declaration to Request for Order, a Declaration of Callie B. Cambridge, and her Income and Expense Declaration on June 2, 2026.

On June 15th, Respondent filed a Declaration of Christie B. Mitchell in Opposition to Petitioner's Request for Affirmative Relief. The court deems this to be a reply declaration, and as such, it is late filed. Civil Procedure section 1005(b) states all reply papers are to be filed at least five court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made June 11th the last day for filing the reply, therefore it is late filed and has not been read or considered by the court.

Respondent is requesting child support orders but prior to making such orders, he asks that Petitioner be ordered to undergo a vocational evaluation with Patrick Sullivan. He asks the court to reserve jurisdiction on support until completion of the evaluation. He also requests attorney's fees in the amount of \$4,250 pursuant to Family Code § 271.

Petitioner agrees to submit to a vocational evaluation at Respondent's sole expense so long as Respondent proposes three providers and Petitioner be permitted to choose one. She further requests attorney's fees in the amount of \$1,500.

The request for a vocational evaluation is granted. Respondent shall propose the names of three evaluators to Petitioner no later than June 25th, Petitioner shall choose one of the three and inform Respondent of her choice no later than July 2nd. If Petitioner does not make her choice by that day, then Respondent shall have sole discretion to choose the evaluator. Respondent is to pay the cost of the evaluation, subject to reallocation at trial.